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CASE #	CASE NAME	HEARING NAME
CVME2505749	SANTIAGO VS CITY OF HEMET	MOTION TO COMPEL

Tentative Ruling: Motion to Compel is Granted in part, Denied in part. Motion granted as to the training records, disciplinary records, complaints, internal affair investigation records, and documents relating to the shooting in the instant case. Denied to the remainder as overly broad as to personnel records. Denied as to “acts of dishonesty” and “acts of conspiracy” for failure to provide good cause.

Pursuant to Evidence Code section 1043 and Penal Code section 832.7, police officer personnel records, or records concerning citizen complaints made against peace officers are privileged and may not be disclosed except under a motion under sections 1043 and 1046 (a “Pitchess motion”). The Pitchess motion must be accompanied by a declaration showing good cause for the disclosure of the records, sets forth the materiality of the records, and stating upon reasonable belief that the governmental agency has the requested documents. (Evid. Code, § 1043, subd. (b)(3).) Good cause may be sufficiently specific to preclude the possibility of merely seeking helpful information. (*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) The moving party only needs to show a plausible factual foundation for discovery. (*Warrick v. Superior Court (City of Los Angeles Police Dept.)* (2005) 35 Cal.4th 1011, 1019.) All that is required is the presentation of a scenario that may have or could have occurred, which is a relatively low threshold. (*Uybungco v. Superior Court* (2008) 163 Cal.App.4th 1043, 1048.) An attorney declaration based upon information and belief and containing hearsay may be used to evidence good cause in support of a Pitchess motion. (*Haggerty v. Superior Court* (2004) 117 Cal.App.4th 1079, 1086.)

“Good cause for discovery exists when the defendant shows both “‘materiality’ to the subject matter of the pending litigation and a ‘reasonable belief’ that the agency has the type of information sought.” [Citation.] A showing of good cause is measured by “‘relatively relaxed standards’” that serve to “‘insure the production’” for trial court review of “‘all potentially relevant documents.’” (*Warrick, supra*, 35 Cal.4th at 1016.) It “is a ‘relatively low threshold for discovery.’” (*Id.* at 1019.)

Plaintiffs seek the following records relating to Deputy Salazar: (a) personnel files; (b) documents relating to work performance, assignments, and training history, performance evaluations, disciplinary history, promotional test score documents; (c) all internal investigation relating to excessive use of force; (d) employment documents (academy training, attendance, training logs/manuals/materials, test materials, policy handbooks, field operations, field training records on the topics of force, deadly/excessive force, escalation, off-duty conduct and firearm carry, threat assessment and tactical decision-making, civilian interaction and intervention protocols, bystander safety during use of force incidents, road rage and off-duty officer response procedures); (e) complaints and (f) disciplinary records regarding neglecting of mandatory duties, failure to know or adhere to the laws and/or training received, use of force, unauthorized discharge of a firearm, acts of dishonesty, acts of conspiracy; (g) internal affair documents; (h) documents relating to Deputy Salazar’s paid administrative leave; and (i) documents relating to Santiago’s shooting. (Desman Decl., ¶5; *Haggerty v. Sup. Ct.* (2004) 117 Cal.App.4th 1079, 1085-1086 [A declaration by counsel on information and belief is sufficient to state facts to satisfy the ‘materiality’ component of that section] [internal quotations omitted].) City has custody of the records sought. (Desman Decl., ¶¶16, 25, 28.)

Penal Code section 832.7 provides, in relevant part:

The following peace officer or custodial officer personnel records and records maintained by a state or local agency shall not be confidential and shall be made available for public inspection pursuant to the California Public Records Act:

A record relating to the report, investigation, or findings of any of the following:
An incident involving the discharge of a firearm at a person by a peace officer or custodial officer
An incident involving the use of force against a person by a peace officer or custodial officer that resulted in death or in great bodily injury
A sustained finding involving a complaint that alleges unreasonable or excessive force
A sustained finding that an officer failed to intervene against another officer using force that is clearly unreasonable or excessive.
(Pen. Code, § 832.7, subd. (b)(A)(i)-(iv), emphasis added.)

Here, the shooting and Santiago's resulting injuries qualify for disclosure of records "relating to the report, investigation or findings" of the shooting. (Pen. Code, § 832.7, subd. (b)(A)(i) & (ii).) City and Deputy Salazar do not dispute the applicability of this specific section to the instant action. However, Deputy Salazar contends the information is available through the CPRA and not a *Pitchess* motion, citing to section 832.7, subdivision (b)(1). City similarly argues that Senate Bill 1421 created public disclosure rights that operate independently of the traditional *Pitchess* process. In reply, Plaintiffs points out Defendants cite to no authority that holds the records are obtainable only through the CPRA.

Indeed, the plain language of section 832.7, subdivision (b)(1) does not expressly prohibit Plaintiffs to file a motion under *Pitchess* to obtain the investigative reports relating to the shooting. Although City relies on *Becerra v. Superior Court* (2020) 44 Cal.App.5th 897, 920-922 to support its position, *Becerra* does hold that that this information is solely available through the CPRA and thus not subject to a *Pitchess* motion.

The CPRA has its own procedures for obtaining documents and for compelling compliance with the Act. If Plaintiffs made a request under this Act and City failed to comply, Plaintiffs would have to "institute proceedings for injunctive or declarative relief or writ of mandate in any court of competent jurisdiction to enforce his or her right to inspect or to receive a copy of any public record or class of public records..." (Gov. Code, § 6258.) Filing a motion would not be the way to obtain said documents. If Plaintiffs seek to obtain these documents through a *Pitchess* motion, they are required to comply with the requirements under Evidence Code section 1043. (Pen. Code, § 832.7, subd. (g) ["This section does not affect the discovery or disclosure of information contained in a peace or custodial officer's personnel file pursuant to Section 1043 of the Evidence code"].) Thus, based on 832.7, subdivision (g), Plaintiffs are not limited to obtaining the investigative records solely through the CPRA.

Based on Penal Code section 832.7, subdivision (b)(1)(A)(i) and (ii) and Evidence Code section 1043, Plaintiffs are entitled to documents relating to the shooting in the instant case as outlined in Desman's declaration, paragraph 5, subdivision (i).

Because Plaintiffs' assert a cause of action for Negligent Hiring, Training and Supervision, his training records files are relevant. Plaintiffs explain that despite having knowledge or reason to know that Deputy Salazar posed a risk of using excessive and unjustified deadly force, City permitted him to remain armed and exercise police authority within the community, thus failing to supervise. (Mot., pg. 15:6-18.) The scope of the records and information sought are appropriate as they relate to Deputy Salazar's use of force and firearm handling and disciplinary records. Thus the records sought under Desman's declaration, paragraph 5, subdivisions (b), (c), (d), (e), (f), (g), and (h) are relevant.

However, as phrased, the "personnel file" is overly broad. (Desman Decl., ¶5, subd. (a).) As to "acts of dishonesty" and "acts of conspiracy", Plaintiffs fail to provide any specific factual scenario establishing a plausible factual foundation for the claimed officer misconduct. The declaration does not articulate any legal theory stemming from the alleged misconduct or explain how the requested discovery would lead to relevant evidence or serve as admissible direct or impeachment evidence supporting the proposed legal theory. (*Warrick, supra*, 35 Cal.4th at 1024-1025.)